

24STCV32684 24STCV32684

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Case Number: 24STCV32684 Hearing Date: July 1, 2026 Dept: 732

Heaton

v. State of California, et al.

Wednesday, July 1, 2026

CASE

NUMBER: 24STCV32684

OPPOSED

Defendants

Department of Consumer Affairs, Bureau of Automotive Repair, Devin Taylor, and George Urena's Demurrer and Motion to Strike Portions of Plaintiff Jamie Heaton's First Amended Complaint.

Facts: This is an action for wrongful termination. The Complaint alleges as follows. Jamie Heaton (Plaintiff) is a 51-year-old male who was employed by the State of California (Defendants) for 13 years as a Program Representative with the Department of Consumer Affairs Bureau of Automotive Repair. (See Compl. 4:2–5.) Plaintiff suffered from a disability that required him to take diabetes medication, which had a side effect that caused excessive diarrhea and thus required Plaintiff to be accommodated with immediate access to a bathroom. (See id. at 4:13–16.) In April 2018, Plaintiff requested an accommodation for immediate

restroom access, which was granted through reassignment to the gas audits unit.
(See id. at 4:17–21.)

However, in July 2021, Plaintiff's supervisor attempted to reassign him to roadside duties despite Plaintiff's medical restrictions, and Plaintiff alleges he was only temporarily accommodated with less suitable duties. (See id. at 5:8–20.) In September 2022, Plaintiff agreed and accepted a transfer to Paramount, Cal. based on an alleged promise by Defendants of eventual relocation to Culver City, Cal., which was not fulfilled. (See id. at 5:21–28; 6:1–11.) Following a March 2023 office flood, Plaintiff alleges he lacked safe restroom access, developed a respiratory infection, and was ultimately placed on administrative leave before being constructively discharged on November 30, 2023. (See id. at 6:13–28; 7:1–22.)

Procedural History: Plaintiff filed the Complaint on December 11, 2024, alleging eight causes of action:

1. Discrimination in Violation of the FEHA
2. Hostile Work Environment Harassment in Violation of the FEHA
3. Retaliation in Violation of the FEHA
4. Failure to Provide Reasonable Accommodation in Violation of the FEHA
5. Failure to Engage in the Interactive Process in Violation of FEHA
6. Failure to Prevent Discrimination, Harassment, or Retaliation in Violation of FEHA
7. Whistleblower Retaliation (Labor Code § 1102.5)
8. Intentional Infliction of Emotional Distress

On July 8, 2025, this court sustained

Defendants' demurrer to the seventh and eighth causes of action, and motion to strike prayer for punitive damages, with leave to amend.

Plaintiff filed a First Amended Complaint on July 28, 2025, alleging the same causes of action.

Defendants filed the present demurrer and motion to strike on August 27, 2025.

Plaintiff filed oppositions on June 17, 2026.

Defendants filed replies on June 24, 2026.

Analysis:

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Id.* at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed."])

"In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated." (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

Defendants Department of Consumer Affairs, Bureau of Automotive Repair, (sued as State of California) and Devin Taylor and George Urena (collectively “Defendants”), demurrer to the eighth cause of action for intentional infliction of emotional distress (“IIED”) in the First Amended Complaint (“FAC”) filed by Plaintiff Jamie Heaton (“Plaintiff”).

To state a prima facie case for IIED, a plaintiff must allege: (1) extreme and outrageous conduct by the defendant; (2) intent to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe or extreme emotional distress; and (4) actual and proximate causation. (Miller v. Fortune Commercial Corp. (2017) 15 Cal.App.5th 214, 228–29.) “Outrageous conduct” is that which exceeds all bounds of decency in a civilized society. (Ibid.) The defendant’s conduct must be directed to the plaintiff, but malicious or evil purpose is not essential to liability.” (So v. Shin (2013) 212 Cal.App.4th 652, 671.)

Defendants argue that the allegations supporting the IIED claim consist entirely of personnel management activity, which cannot on its own form the basis for an IIED claim. (Demurrer at pp. 7–10.) This court previously sustained Defendants’ demurrer to the same claim on the same basis, reasoning that Plaintiff had pleaded only the failure to accommodate and the imposition of administrative leave, which constitute personnel management actions insufficient to create liability for outrageous

conduct. (7/8/2026 Order.)

The allegations supporting the IIED claim in the FAC are essentially the same as those supporting the claim in the prior iteration of the pleadings. The allegations of outrageous conduct consist of personal management activity –i.e. the failure to provide a requested accommodation, and the placing of Plaintiff on administrative leave. Such conduct has been deemed insufficient as a matter of law to support an IIED claim. “Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society.” (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) Even if improperly motivated, personnel decisions do not rise to the level required for IIED. (Ibid.) Plaintiff’s Complaint alleges employment-related decisions such as transfers, assignments, and administrative leave, it fails to state a valid IIED claim.

The only addition made to these claims with the filing of Plaintiff’s FAC is made in paragraph 14c, in which Plaintiff alleges that in January 2020, before his remote assignment during the COVID pandemic, his return to work in an accommodated position, his September 2022 reassignment to the Paramount location, and his November 2023 administrative leave (FAC ¶¶ 14d, 14e, 14i, 15), that supervisor Jose Mauberis retaliated against Plaintiff by “shunning him” and “micromanaging him.” (FAC ¶ 14c; Opposition at pp. 4–5.) This de minimis addition is akin to the personnel management activity already alleged. (See Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75, 102 [holding insufficient to constitute outrageous conduct evidence that supervisor “refused to listen to Light’s complaints about retaliation, organized the anti-Hurley counseling session after the gun scope incident, encouraged Seals’s efforts to silence Light, awarded Seals a commendation after the February 23 incident, and participated in the Department’s retaliation against Light (including denying promised training and shifting Light’s work location),” because such conduct constituted “common—though ultimately misguided—supervisory actions”].) The new allegation is insufficient to support a claim for outrageous conduct on its own, and does not support the creation of an IIED claim considered in connection with the other personnel management activity alleged.

The demurrer is therefore SUSTAINED as to the eighth cause of action. Although Plaintiff seeks leave to amend (Opposition at pp. 7–8), the present FAC is itself the product of amendment, leave for which

was granted specifically to address the precise defect discussed above. As Plaintiff has failed to rectify the defect, and presents no basis to believe further amendment would cure it, no leave to amend is granted.

II.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1)). The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. (California Rules of Court Rule 3.1322.)

The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a)). The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

Under Civil Code section 3294(a), punitive damages are only permitted in non-contract actions where the defendant is guilty of "oppression, fraud, or malice." Subdivision (c) defines (1) "malice" as conduct intended to cause injury or despicable conduct carried out with a willful and conscious disregard of others' rights or safety; (2) "oppression" as despicable conduct that subjects someone to unjust hardship in conscious disregard of their rights; and (3) "fraud" as intentional misrepresentation or concealment made to deprive someone of property or legal rights. Mere commission of a tort is insufficient—punitive damages require more. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894.) Negligence, gross negligence, or recklessness does not satisfy the standard. (*Dawes v. Superior Court* (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) However, punitive damages may be recovered in negligence cases if the defendant acted

with conscious disregard for others' safety. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) Conduct based on conscious disregard must be both despicable and willful. (College Hosp. Inc. v. Superior Court (1994) 8 Cal.4th 704, 713.)

Plaintiff here seeks
punitive damages against individual Defendants Devin Taylor and George Urena.[1]
The FAC alleges that Plaintiff repeatedly complained to Taylor that he required accommodations, but Taylor did not provide them. (FAC ¶¶ 14h, 14k, 14q.)
Similar allegations are made against Urena, along with the allegation that Urena placed Plaintiff on administrative leave. (FAC ¶¶ 14q, 15.) The FAC adds the following new addition to paragraph 14k: "Despite Goodwin, Taylor, and Urena being aware of Plaintiff's need and request for accommodations, they continuously failed to relocate Plaintiff which caused emotional distress in reckless disregard for Plaintiff's interests." (FAC ¶ 14k.)

Plaintiff's amended
pleading is sufficient to state a prayer for punitive damages against the individual defendants. Plaintiff alleges that he was entitled to a medical accommodation, that the individual defendants were actually aware of his need for the same, and did not provide the accommodations in reckless disregard for Plaintiff's rights. This suffices at the pleading stage to allege malice and oppression, and thus entitlement to punitive damages. (See Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6 [allegation of "retaliation" as motive supported allegation of malice].) Unlike the prior Complaint, which contained only omnibus allegations of malice, oppression, and fraud, as to all Defendants (Complaint ¶ 18), Plaintiff here pleads specific allegations in relation to the individual defendants.

Accordingly, the motion to
strike is DENIED.

Superior Court of
California

County of Los Angeles

Department 732

JAMIE HEATON,

Plaintiff,

v.

STATE
OF CALIFORNIA, et al.,

Defendants.

Case No.: 24STCV32684

Hearing Date: July 1, 2026

[TENTATIVE]

RULING RE:

Defendants Department of Defendants Department of Consumer
Affairs, Bureau of Automotive Repair, Devin Taylor, and George Urena's
Demurrer and Motion to Strike Portions of Plaintiff Jamie Heaton's First
Amended Complaint.

Defendants
Department of Consumer Affairs, Bureau of Automotive Repair, Devin Taylor, and
George Urena's Demurrer and Motion to Strike Portions of Plaintiff Jamie
Heaton's First Amended Complaint is SUSTAINED without leave to amend as to the
eighth cause of action for intentional infliction of emotional distress, and
DENIED as to the prayer for punitive damages.

Defendants to provide
notice.

Dated:
July 1, 2026

Hon.
Lynne Hobbs

Judge
of the Superior Court

[1] Punitive damages
are not available against a public entity under Government Code § 818.